

24STCV04916 24STCV04916

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-08-05

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Case Number: 24STCV04916 Hearing Date: August 5, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department 508

JESSE DURAN,

Plaintiff,

vs.

CITY OF MONTEBELLO,

et al.,

Defendants.

Case No.:

24STCV04916

Hearing Date:

August 5, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE] ORDER RE:

PLAINTIFF JESSE

DURAN'S MOTION TO ENFORCE THE PARTIES' AUGUST 7, 2025 WRITTEN STIPULATION

Background

Plaintiff Jesse

Duran ("Duran") filed this action on February 27, 2024 against Defendants City of Montebello ("Montebello"), County of Los Angeles, and Edward Anthony Rosas, alleging three causes of action. Duran filed a first amended complaint ("FAC") alleging two causes of action for (1) governmental tort: premises liability [Gov. Code §§815.2, 815.4, 815.6, 818.6, 820, 821.4, 835, 835.2, 840.2, 840.4]; [Los Angeles Municipal Code, Chapter VI, §§15.52, 15.52.010, 15.52.020, 15.52.030], and (2) negligence (motor vehicle).

Duran now moves for an order "[e]nforcing the parties' August 7, 2025, written stipulation continuing trial and related dates." (Notice of Mot., 1:28-2:1.) In doing so, Duran also requests that the Court (1) find that the stipulation expressly barred dispositive motions from following the continued trial date, (2) find that Montebello breached the stipulation by filing its motion for summary judgment, (3) strike, vacate, or take off calendar Montebello's motion for summary judgment, (4) stay all deadlines relating to that motion for summary judgment, and (5) grant any other relief the Court deems just and proper. Montebello opposes. Duran did not reply.

Discussion

Duran's motion explains that "[i]n early August 2025, counsel for the City of Montebello proposed a trial continuance so the parties could mediate the case." (Mot., 4:19-20.) Duran's counsel explains that "[o]n August 7, 2025, the parties, through counsel, executed a written stipulation and order continuing trial and related dates. I specifically included in the Stipulation the language that stated 'All dispositive motion deadlines shall not follow the new trial date.'" (Morales Decl., ¶ 5 [emphasis omitted].) Duran's counsel explains that "[t]hat term was intentional. Plaintiff agreed to the continuance on that basis. Plaintiff did not agree to a continuance that would revive or extend dispositive-motion practice." (Morales

Decl., ¶ 7.) Duran's counsel explains that "[b]y the time the August 7, 2025 stipulation was entered into, the City's deadline to file an MSJ under the then-existing trial schedule had already passed. The stipulation therefore confirmed that the continuance would not be used to resurrect a lapsed dispositive-motion opportunity." (Morales Decl., ¶ 10.) Duran's counsel further states that "[o]n February 20, 2026, Defendant City of Montebello nevertheless served and filed a Motion for Summary Judgment," which its "filing was directly contrary to the parties' August 7, 2025 written stipulation." (Morales Decl., ¶¶ 12-13.)

"A stipulation is an agreement between counsel respecting business before the court [citation], and like any other agreement or contract, it is essential that the parties or their counsel agree to its terms." (Palmer v. City of Long Beach (1948) 33 Cal.2d 134, 142.) "[A] stipulation in proper form within the authority of the attorneys is binding on the parties." (Searle v. Allstate Life Ins. Co. (1985) 38 Cal.3d 425, 438.)

In support of the motion, Duran's counsel attaches the August 7, 2025 stipulation as Exhibit A, which expressly states that "[a]ll dispositive motion deadlines shall not follow the new trial date." (Morales Decl., Ex. A, p. 3, ¶ 4.) Duran asserts that "[t]he City proposed a continuance to facilitate mediation. Plaintiff agreed, but only on an express condition: the continued trial date would not create or revive dispositive-motion rights. The City accepted that bargain, signed it, and obtained the benefit of it. Having accepted the benefit, the City cannot now disregard a material term simply because it later decided that term no longer suited its litigation strategy." (Mot., 5:17-22.)

Montebello's opposition first asserts that "Plaintiff failed to attach the actual stipulation that is enforceable in this matter. Plaintiff's Exhibit A contains the proposed stipulation and order that the Parties would request that the Court enter. Plaintiff's Exhibit A does not contain the actual stipulation and order that the Court signed and made the rule of the case. Plaintiff's motion therefore is not a motion to enforce, but instead, a motion for the Court to strike the current Order and enter a new order that is identical to the one the Court previously rejected." (Opp., 1:6-11.) Montebello attaches "the true and correct copy of the stipulation and order, as signed and entered by the Court on September 12, 2025." (Opp., 2:9-10.)

Montebello correctly summarizes the changes the Court made to the proposed stipulation before signing and entering the Order. Namely, that “the Court used a strikethrough to the bracketed ‘[proposed]’ text in the caption of the document” and “the Court struck out the language ‘all dispositive motion deadlines shall not follow the new trial date’ and even signified the change with an initial next to the edit.” (Opp., 2:12-19; see Ex. A, p. 5.) The Court’s Minute Order from September 12, 2025 incorporates the Court’s signed Order and does not include language that dispositive motion deadlines will not continue with the new trial date.

Montebello further contends that “Plaintiff’s motion is not seeking enforcement of a contractual agreement between the parties but instead asks the Court to vacate its September 12 order, and to reconsider its partial denial of the August 7 proposed order and stipulation. The exact language that Plaintiff is opposing comes from the Court’s order, partially granting the Parties’ proposed stipulation.” (Opp., 3:9-12.) Montebello explains it “did not file its motion for summary judgment with any intent to engage in gamesmanship or to violate a stipulation. Defendant merely noticed, as Plaintiff could have as well, that the Court explicitly rejected the Parties’ proposal to untether the dispositive motion deadline to the trial date. The Court was unambiguous, as it clearly struck the language in its entirety, and initialed next to the revision.” (Opp., 4:16-20.)

As provided by Code of Civil Procedure section 283, subdivision 1, a stipulation serves “[t]o bind [counsel’s] client in any of the steps of an action or proceeding by his agreement filed with the Clerk, or entered upon the minutes of the Court, and not otherwise.” “Every direction of a court or judge, made or entered in writing, and not included in a judgment, is denominated an order.” (Code Civ. Proc., § 1003.) “Unless otherwise required by statute, an order becomes legally effective at the time it is signed and filed.” (Maxwell v. Perkins (1953) 116 Cal.App.2d 752, 756.) “[I]t is fundamental that all orders of a court of record must be recorded in writing [citation] and an order is ineffective unless it is either filed with the clerk or entered in the minutes.” (Application of Gilreath (1959) 167 Cal.App.2d 655, 656-657.) A stipulation “not filed or entered, [is] not, therefore, legally binding upon the trial court.” (Blackwood v. Cutting Packing Co. (1886) 71 Cal. 461, 465.)

The law provides that the Court’s authority to enforce a stipulation exists only if it is signed and filed as an

order of the Court. The parties' signed stipulation from August 7, 2025 was a proposed stipulation. On September 12, 2025, the Court signed and filed the Order for the stipulation. Because the Court expressly struck out the language Duran's motion seeks to enforce, Duran requests that the Court enforce a proposed document with language the Court expressly chose not to allow. Accordingly, Duran's request exceeds the Court's jurisdiction.

Conclusion

Based on the foregoing, Duran's motion to enforce the parties' stipulation is DENIED. The operative Order is the Order filed by the Court on September 12, 2025.

Duran is ordered to provide notice of this Order.

DATED: August 5, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court